

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Anya Curtis	Team: Squad #11	CCRB Case #: 202200554	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Monday, 01/17/2022 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 7/17/2023	Precinct: 120
Date/Time CV Reported Tue, 01/18/2022 1:10 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 01/27/2022 1:26 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Carl Pattelli	00512	944880	WARRSEC
2. DT3 Jason Ribeiro	02918	951134	WARRSEC
3. DT3 Robert White	05993	942836	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Jason Ribeiro	Abuse: Detective Jason Ribeiro refused to show the arrest warrant to § 87(2)(b)	A . Unfounded
B . DT3 Carl Pattelli	Abuse: Detective Carl Pattelli refused to show the arrest warrant to § 87(2)(b)	B . Unfounded
C . DT3 Robert White	Abuse: Detective Robert White refused to show the arrest warrant to § 87(2)(b)	C . Unfounded
D . DT3 Carl Pattelli	Abuse: Detective Carl Pattelli entered § 87(2)(b) in Staten Island.	D . Unable to Determine
E . DT3 Jason Ribeiro	Abuse: Detective Jason Ribeiro entered § 87(2)(b) in Staten Island.	E . Unable to Determine
F . DT3 Robert White	Abuse: Detective Robert White entered § 87(2)(b) in Staten Island.	F . Unable to Determine
G . DT3 Carl Pattelli	Discourtesy: Detective Carl Pattelli spoke discourteously to § 87(2)(b)	G . Unable to Determine
H . DT3 Carl Pattelli	Force: Detective Carl Pattelli used physical force against § 87(2)(b)	H . Unable to Determine
I . DT3 Carl Pattelli	Discourtesy: Detective Carl Pattelli acted discourteously toward § 87(2)(b)	I . Unable to Determine
J . DT3 Carl Pattelli	Abuse: Detective Carl Pattelli interfered with § 87(2)(b)'s use of a recording device.	J . Unable to Determine
K . DT3 Carl Pattelli	Discourtesy: Detective Carl Pattelli spoke discourteously to § 87(2)(b)	K . Unable to Determine
L . DT3 Carl Pattelli	Abuse: Detective Carl Pattelli threatened to arrest § 87(2)(b)	L . Unable to Determine
M . DT3 Carl Pattelli	Force: Detective Carl Pattelli used physical force against § 87(2)(b)	M . Unable to Determine
N . DT3 Robert White	Force: Detective Robert White used physical force against § 87(2)(b)	N . Unable to Determine
O . DT3 Jason Ribeiro	Force: Detective Jason Ribeiro used physical force against § 87(2)(b)	O . Unable to Determine

Officer(s)	Allegation	Investigator Recommendation
P . DT3 Carl Pattelli	Abuse: Detective Carl Pattelli refused to provide his name to § 87(2)(b)	P . Unable to Determine
Q . DT3 Carl Pattelli	Abuse: Detective Carl Pattelli refused to provide his shield number to § 87(2)(b)	Q . Unable to Determine
R . DT3 Jason Ribeiro	Abuse: Detective Jason Ribeiro refused to provide his name to § 87(2)(b)	R . Unable to Determine
S . DT3 Jason Ribeiro	Abuse: Detective Jason Ribeiro refused to provide his shield number to § 87(2)(b)	S . Unable to Determine
T . DT3 Robert White	Abuse: Detective Robert White refused to provide his name to § 87(2)(b)	T . Unable to Determine
U . DT3 Robert White	Abuse: Detective Robert White refused to provide his shield number to § 87(2)(b)	U . Unable to Determine

Case Summary

On January 18, 2022, § 87(2)(b) filed the following complaint over the phone with IAB. The complaint was forwarded to CCRB on January 27, 2022.

On January 17, 2022, at approximately 6:00 a.m., Detective Carl Pattelli, Detective Jason Ribeiro, and Detective Robert White, of the Staten Island Warrants Section, arrived at § 87(2)(b) in Staten Island to arrest § 87(2)(b) due to an I-Card. PO Matthew Kemper of the 121st Precinct Detective Squad was the lead investigator. All three failed to show her a warrant upon her request (**Allegations A-C: Abuse of Authority: Unfounded**). § 87(2)(b) advised she was going to close her door and get dressed, which Detective Ribeiro and Detective White allowed her to do. Once she closed the door, officers began kicking and banging on the door. After opening the door, Detective Pattelli allegedly pushed it open and walked into the apartment (**Allegation D: Abuse of Authority: Unable to determine**). Detective Ribeiro and Detective White allegedly entered the apartment after Detective Pattelli (**Allegations E-F: Abuse of Authority: Unable to determine**).

Detective Pattelli allegedly used profanity towards § 87(2)(b) on multiple occasions during their interaction (**Allegation G: Discourtesy: Unable to determine**). § 87(2)(b) alleged Detective Pattelli pushed her boyfriend § 87(2)(b) when he first entered the apartment and later pushed him onto the bed after smacking his phone out of his hand while trying to record (**Allegation H: Force: Unable to determine; Allegation I: Discourtesy: Unable to determine; Allegation J: Abuse of Authority: Unable to determine**). Detective Pattelli allegedly told § 87(2)(b) “Shut the fuck up before you get arrested too” (**Allegation K: Discourtesy: Unable to determine; Allegation L: Abuse of Authority: Unable to determine**).

§ 87(2)(b) alleged multiple instances of force against Detective Pattelli throughout the incident in which he pushed her onto her closet floor, and when handcuffing her, twisted her left arm upward and pulled her up from the floor by the handcuffs. He also allegedly pushed pressure points on her body, causing her to go limp, and folded the handcuffs upward at an angle where her wrists could have broken. Detective Pattelli, Detective White and Detective Ribeiro then lifted her up and threw her into a police van (**Allegations M-O: Force: Unable to determine**).

§ 87(2)(b) allegedly asked all three detectives for their names and shield numbers, which they did not provide (**Allegations P-U: Abuse of Authority: Unable to determine**).

§ 87(2)(b) was arrested during this incident

A request for BWC via the NYPD Legal Bureau yielded negative results as the officers involved are assigned to the Warrants Section.

Allegation (A) Abuse of Authority: Detective Jason Ribeiro refused to show the arrest warrant to § 87(2)(b)

Allegation (B) Abuse of Authority: Detective Carl Pattelli refused to show the arrest warrant to § 87(2)(b)

Allegation (C) Abuse of Authority: Detective Robert White refused to show the arrest warrant to § 87(2)(b)

§ 87(2)(b) (BR 01) heard “excessive” and “loud” banging on her bedroom and living room windows and at her door. § 87(2)(b) sent § 87(2)(b) to open the door where he was met by Detective Ribeiro and Detective White. When the detectives asked if § 87(2)(b) was there, § 87(2)(b) asked to see a warrant. The detectives stated they would only show the warrant to § 87(2)(b). § 87(2)(b) went to tell § 87(2)(b) and she told him to tell the detectives she would be out shortly and to close the door. When § 87(2)(b) tried to close the door, either Detective Ribeiro or Detective White put their foot in the door to stop § 87(2)(b) from closing it. § 87(2)(b) then went to the door and asked to see the warrant. The detectives never showed § 87(2)(b) the warrant but told her that the warrant was for a desk appearance ticket.

Detective Ribeiro (BR 03) testified that when § 87(2)(b) opened the door, she snatched the I-Card out of his hand, but he did not recall whether she asked to see the I-Card.

Detective Pattelli (BR 02) did not recall if § 87(2)(b) asked to see a warrant and did not recall if anyone showed her a warrant.

Detective White (BR 04) testified that Detective Ribeiro had the I-Card in his hand, when § 87(2)(b) attempted to snatch the I-Card from his hand but did not ask to see it. § 87(2)(b) did not successfully take it from his hand. § 87(2)(b) later asked to see the I-Card, but Detective White did not recall if it was shown to her.

PO Kemper (BR 10) testified that he was the lead investigator on § 87(2)(b) case but was not present for her apprehension.

NYPD Legal Bureau returned an I-Card (BR 09) for § 87(2)(b) regarding Criminal Complaint Report § 87(2)(b) in which she was charged with § 87(2)(b).

§ 87(2)(g)

As such, it is recommended that **Allegations A-C** be closed as **unfounded**.

Allegation (D) Abuse of Authority: Detective Carl Pattelli entered § 87(2)(b) in Staten Island.

Allegation (E) Abuse of Authority: Detective Jason Ribeiro entered § 87(2)(b) in Staten Island.

Allegation (F) Abuse of Authority: Detective Robert White entered § 87(2)(b) in Staten Island.

After being advised of why detectives were there, § 87(2)(b) (BR 01) told Detective Ribeiro and Detective White that she was going to close the door and get dressed, which they allowed her to do. When she closed the door, kicking and banging resumed at the door. After § 87(2)(b) opened the door a second time, Detective Pattelli pushed it open and Detective Ribeiro and Detective White followed behind.

The investigation was unable to contact § 87(2)(b) to obtain his statement.

Detective Ribeiro (BR 03) testified when they arrived on scene, Detective Ribeiro and Detective White went to § 87(2)(b) apartment, while Detective Pattelli went to the rear of the building to ensure § 87(2)(b) would not attempt to escape through the window. § 87(2)(b) answered the door and told Detective Ribeiro to give him a minute and walked away from the door, leaving it open. § 87(2)(b) then came to the door and slammed it. She was screaming on the other side of the door, but he did not recall what she was saying. Seconds later, § 87(2)(b) opened the door, yelling and irate. § 87(2)(b) then said, “This is bullshit” and went back into the bedroom. § 87(2)(b) told Detective Ribeiro and Detective White “You can come in”. Either Detective Ribeiro or Detective White went over the radio to alert Detective Pattelli to come around.

Detective Pattelli (BR 02) confirmed he was not present for initial interaction at the door between Detective Ribeiro, Detective White, and § 87(2)(b) as he was rear security. After being in the rear for a few minutes, either Detective Ribeiro or Detective White told him to come around to the apartment. When he arrived at the apartment, Detective Ribeiro and Detective White were already inside.

Detective White (BR 04) also stated that § 87(2)(b) gestured for he and Detective Ribeiro to enter the apartment.

§ 87(2)(g)

Therefore, it is recommended that **Allegations D, E, and F** be closed as **unable to determine**.

Allegation (G) Discourtesy: Detective Carl Pattelli spoke discourteously to § 87(2)(b)

§ 87(2)(b) (BR 01) testified that after entering her apartment, Detective Pattelli said to her, “I’m tired of this shit. We’ve been here 30 minutes. Let’s go, it’s a fucking DAT.” As officers attempted to place her inside of a police vehicle, § 87(2)(b) refused to enter it. She screamed that the officers bruised her arms, and that Detective Pattelli was bending her handcuffs to which Detective Pattelli responded, “Shut the fuck up” and “I’m tired of your shit”.

The investigation was unable to contact § 87(2)(b) to obtain his statement.

Detective Pattelli (BR 02) denied using any profanity when interacting with § 87(2)(b)

Detective Ribeiro (BR 03) and Detective White (BR 04) corroborated Detective Pattelli’s denial.

§ 87(2)(g)

§ 87(2)(b). Therefore, it is recommended that **Allegation G** be closed as **unable to determine**.

Allegation (H) Force: Detective Carl Pattelli used physical force against § 87(2)(b)

Allegation (I) Discourtesy: Detective Carl Pattelli acted discourteously toward § 87(2)(b)

Allegation (J) Abuse of Authority: Detective Carl Pattelli interfered with § 87(2)(b)’s use of a recording device.

Allegation (K) Discourtesy: Detective Carl Pattelli spoke discourteously to § 87(2)(b)

Allegation (L): Abuse of Authority: Detective Carl Pattelli threatened to arrest § 87(2)(b)

§ 87(2)(b) (BR 01) testified that after Detective Pattelli entered the apartment, § 87(2)(b) began to walk backward into her bedroom. § 87(2)(b) stepped in front of her because he did not know what Detective Pattelli was going to do. Detective Pattelli pushed § 87(2)(b) with one hand, making contact with his chest, into the wall. § 87(2)(b) then went into her bedroom where § 87(2)(b) eventually made his way as well. § 87(2)(b) instructed § 87(2)(b) to begin recording the incident, prompting Detective Pattelli to smack the phone out of § 87(2)(b)’s hand. Det. Pattelli pushed § 87(2)(b) onto the bed and told him to “Shut the fuck up before you get arrested too.”

Detective Pattelli (BR 02) denied making any physical contact with § 87(2)(b) or use any profanity while interacting with him. He also denied threatening to arrest § 87(2)(b)

Detective Ribeiro (BR 03) and Detective White (BR 04) corroborated Det. Pattelli’s denials. Detective Ribeiro added that § 87(2)(b) was “very compliant” and he assisted the detectives in calming § 87(2)(b) during the incident.

§ 87(2)(g)

§ 87(2)(b). As such, it is recommended that **Allegations H-L** be closed as **unable to determine**.

Allegation (M) Force: Detective Carl Pattelli used physical force against § 87(2)(b)

Allegation (N) Force: Detective Robert White used physical force against § 87(2)(b)

Allegation (O) Force: Detective Jason Ribeiro used physical force against § 87(2)(b)

§ 87(2)(b) (BR 01) testified that when she went into her closet to retrieve clothes to put on, Detective Pattelli pushed her down onto the closet floor. Detective Pattelli then reached down and grabbed her from her armpit and twisted her arms to handcuff her. He also pushed pressure points near her neck and shoulder to make her go limp. He then lifted her up from the floor by her handcuffs. Once she was handcuffed, § 87(2)(b) was escorted out of the apartment into the hallway where Detective Pattelli continued pushing pressure points between § 87(2)(b)’s neck and shoulder in a digging motion. Detective Pattelli was also squeezing under her arm and folded her handcuffs upward at such an angle that her wrists would have broken if more pressure would have

been applied. When § 87(2)(b) refused to enter the police vehicle to be transported to the 121st Precinct stationhouse, Detective Pattelli, Detective White and Detective Ribeiro lifted her by her legs and threw her into the van.

Detective Pattelli (BR 02) denied applying on any part of § 87(2)(b) body to intentionally inflict her pain. At times, § 87(2)(b) would go limp on her own and drop to the floor requiring Detective Pattelli to help her stand up. § 87(2)(b) screamed and cursed as she was being escorted into the hallway of the building. Detective Pattelli stated § 87(2)(b) either stepped into the police vehicle or sat on the floor of the police vehicle. § 87(2)(b) then spat at Detective Pattelli once or twice and it landed on his face.

Detective Ribeiro (BR 03) did not observe Detective Pattelli do anything to intentionally inflict pain on § 87(2)(b). § 87(2)(b) was never thrown into the police van. § 87(2)(b) was going limp to avoid getting into the van but eventually entered voluntarily. § 87(2)(b) told Detective Pattelli she hoped he was killed in the line of duty and that his family dies. § 87(2)(b) then spat at Detective Pattelli once.

Detective White (BR 04) did not observe Detective Pattelli using any force on § 87(2)(b). § 87(2)(b) voluntarily entered the van. § 87(2)(b) spat on Detective Pattelli from the door of the van. During the ride, § 87(2)(b) removed a headrest and threw it at Det. White, but it did not hit him.

§ 87(2)(g)

Therefore, it is recommended that **Allegations M-O** be closed as **unable to determine**.

Allegation (P) Abuse of Authority: Detective Carl Pattelli refused to provide his shield number to § 87(2)(b)

Allegation (Q) Abuse of Authority: Detective Carl Pattelli refused to provide his shield number to § 87(2)(b)

Allegation (R) Abuse of Authority: Detective Jason Ribeiro refused to provide his name to § 87(2)(b)

Allegation (S) Abuse of Authority: Detective Jason Ribeiro refused to provide his shield number to § 87(2)(b)

Allegation (T) Abuse of Authority: Detective Robert White refused to provide his name to § 87(2)(b)

Allegation (U) Abuse of Authority: Detective Robert White refused to provide his shield number to § 87(2)(b)

As § 87(2)(b) (BR 01) was being led out of her apartment, she asked Detective Pattelli, Detective Ribeiro, and Detective White for their names and shield numbers. None of the detectives responded.

Detective Pattelli (BR 02), Detective Ribeiro (BR 03), and Detective White (BR 04) did not recall § 87(2)(b) asking for their names and shield numbers.

§ 87(2)(g)

Therefore, it is recommended that **Allegations P-U** be closed as **unable to determine**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party. (BR 07).
- Detective Pattelli has been a member of service for 15 years and has been a subject in seven other CCRB complaints and 20 allegations, of which three were substantiated:

